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September 8, 2026

VIA EDIS

The Honorable Lisa R. Barton
Secretary to the Commission
U.S. INTERNATIONAL TRADE COMMISSION
500 E Street, SW, Room 112-A
Washington, D.C. 20436

Re: Certain Vertical Power Delivery Systems, Components Thereof, and Computing Systems Containing the Same, Inv. N. 337-TA-_____

Dear Secretary Barton:

In accordance with the Commission's Rules of Practice and Procedure, enclosed for filing on behalf of Complainant Vicor Corporation ("Vicor" or "Complainant") are the following documents in support of Vicor's request that the Commission institute an investigation pursuant to Section 337 of the Tariff Act of 1930, as amended, 19 U.S.C. § 1337.

Please note that Confidential Exhibits 3C, 5C, 17C, 22C, 25C, 26C and 37C contain Confidential Business Information and, pursuant to the Commission's Rules of Practice and Procedure, a request for confidential treatment of the information in those exhibits is enclosed. Confidential Exhibits 29C, 30C, 35C, and 36C contain information that the Proposed Respondents may contend constitutes Confidential Business Information and thus Vicor requests confidential treatment of this information pending the Proposed Respondents position regarding this matter.

Accordingly, Vicor submits the following documents for filing:

1. One (1) electronic copy of Vicor's Verified Complaint, pursuant to Commission Rule 210.8(a)(1)(i);
2. One (1) electronic copy of the public exhibits and public versions of the confidential exhibits to the Complaint, pursuant to Commission Rules 210.11(a)(1)(i) and 210.12(1)(9);

3. One (1) electronic copy of the confidential exhibits to the Complaint referenced in the Complaint as Confidential Exhibit Nos. 3C, 5C, 17C, 22C, 25C, 26C, 29C, 30C, 35C, 36C, and 37C pursuant to Commission Rules 201.6(c) and 210.8(a)(1)(ii);
4. One (1) electronic copy of the certified prosecution history of the Asserted Patent included as Appendix A1 to the Complaint, pursuant to Commission Rule 210.12(c)(1);
5. One (1) electronic copy of the certified assignments of the Asserted Patent included as Public Exhibit 2 pursuant to Commission Rule 210.12(a)(9)(ii);
6. One (1) electronic copy of the certified prosecution history of the priority applications of the Asserted Patent is included as Appendix A2 to the Complaint pursuant to Commission Rule 210.12(c)(2);
7. One (1) electronic copy of Vicor's letter and certification pursuant to Commission Rules 2016.6(b) and 2150.5(d) requesting confidential treatment of information appearing in Confidential Exhibits Nos. 3C, 5C, 17C, 22C, 25C, 26C, 29C, 30C, 35C, 36C, and 37C;
8. A Statement Regarding the Public Interest regarding the remedial orders sought by Vicor, pursuant to Commission rule 210.8(b);
9. An exemplary Vicor domestic industry article, included as Physical Exhibit 1, pursuant to Commission Rule 210.12(b).

Pursuant to Commission Rule 210.8(a)(1)(i), paper copies of the preceding documents and a CD with copies of the Confidential Exhibits will be delivered to the Secretary.

Please contact me with any questions regarding this submission. Thank you for your attention to this matter.

Very truly yours,

Dated: September 8, 2026

Respectfully submitted,

/s/ Louis S. Mastriani

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September 8, 2026

VIA EDIS

*REQUEST FOR CONFIDENTIAL TREATMENT & CERTIFICATION REGARDING REQUEST
FOR CONFIDENTIAL TREATMENT*

The Honorable Lisa R. Barton
Secretary to the Commission
U.S. INTERNATIONAL TRADE COMMISSION
500 E Street SW Room 112-A
Washington D.C. 20436

**Re: Certain Vertical Power Delivery Systems, Components Thereof, and Computing
Systems Containing the Same, Inv. N. 337-TA-_____**

Dear Secretary Barton:

In accordance with Commission Rules 210.5(d) and 201.6(b)(1), 19 C.F.R. §§ 210.5 and 201.6, Complainant Vicor Corporation (“Vicor” or “Complainant”) respectfully requests confidential treatment of the business information contained in the Verified Complaint and Confidential Exhibits 3C, 5C, 17C, and 22C.

The information contained in Confidential Exhibit Nos. 3C, 5C, 17C, 22C, 25C, 26C and 37C and qualifies as confidential business information pursuant to Commission Rule 201.6 because:

- a) It is not available to the public;
- b) Unauthorized disclosure of such information could cause substantial harm to Complainant’s competitive position; and
- c) Its disclosure could impair the Commission’s ability to obtain information necessary to perform its statutory function.

Confidential Exhibit Nos. 29C, 30C, 35C, and 36C have been marked confidential in an abundance of caution. These exhibits may contain information that the Proposed Respondents

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may contend constitutes Confidential Business Information and thus Vicor requests confidential treatment of this information pending the Proposed Respondents position regarding this matter

I certify that the proprietary commercial information, propriety commercial relationships, and/or proprietary business information that is or may be contained in Confidential Exhibit Nos. 3C, 5C, 17C, 22C, 25C, 26C, 29C, 30C, 35C, 36C, and 37C is not reasonably available to the public and thus warrants confidential treatment.

Please contact me with any questions regarding this submission. Thank you for your attention to this matter.

Dated: September 8, 2026

Respectfully submitted,

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Counsel for Vicor Corporation

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

In the Matter of

CERTAIN VERTICAL POWER DELIVERY
SYSTEMS, COMPONENTS THEREOF,
AND COMPUTING SYSTEMS
CONTAINING THE SAME

Investigation No. 337-TA -

**COMPLAINANT VICOR CORPORATION'S STATEMENT
REGARDING THE PUBLIC INTEREST**

Pursuant to Commission Rule 210.8(b), Complainant Vicor Corporation ("Vicor") respectfully submits this Statement Regarding the Public Interest.

Vicor is a U.S. company headquartered in Massachusetts which has spent decades developing innovative, high-performance power converter modules and power distribution architectures for use in computer systems, artificial intelligence (AI) servers, and datacenters. In filing its Complaint, Vicor seeks the Commission's assistance in protecting Vicor's substantial domestic industry and intellectual property relating to these technologies by preventing companies—including Vicor's direct competitors—from importing and selling products that use Vicor's patented technologies in the United States.

The Proposed Respondents have copied Vicor's patented technologies without license in order to design and manufacture vertical power delivery systems, components thereof and computing systems containing the same, for distribution and sale to Vicor customers and potential customers. Many of these Proposed Respondents have been named as respondents in the 1370 investigation, where they were found in violation, as well as in the pending 1484 investigation.

Simply stated: the Proposed Respondents are unfairly depriving Vicor of business it has earned through hard work and years of innovating by their deliberate, ongoing and knowing theft

of Vicor's own technologies. To put an end to this illegal conduct that harms domestic jobs and investments, Vicor seeks a limited exclusion order directed to each of the Proposed Respondents which excludes from entry into the United States certain vertical power delivery systems, components thereof, and computing systems containing the same (the "Accused Products") that infringe U.S. Patent No. 10,903,734 ("the Asserted Patent"). Vicor also seeks permanent cease and desist orders prohibiting the Proposed Respondents, their subsidiaries, parents, related companies, and agents, from importing, selling for or after importation, marketing, distributing, offering for sale, using after importation, or otherwise transferring the Accused Products in the United States.

The requested remedial orders do not implicate a compelling interest that outweighs protection of Vicor's intellectual property rights and the entry of a limited exclusion order and cease and desist orders. The Accused Products do not involve any public health, safety, or welfare concerns, and their exclusion would not "deprive the public of products necessary for some important health or welfare needed. *Spansion, Inc. v. U.S. Int'l Trade Comm'n*, 629 F.3d 1331, 1360 (Fed. Cir. 2010). Further, the requested remedial orders would not substantially impact the U.S. production of like or directly competitive articles when Vicor and its licensees stand ready to fill any gap. Finally, U.S. consumers will not face any potential shortage of competitive products or services because the Accused Products are limited to a subset of Proposed Respondents' product offerings, manufacturers of vertical power delivery systems, including the Proposed Respondents, can sell to OEMs and hyperscalers who are licensed under the '734 patent, and the market includes competitive offerings from Vicor and its licensees. It should be noted that the Commission determined that issuance of the limited exclusion orders and cease and desist orders in the 1370 investigation presented no adverse impact on the public

interest factors. Likewise, the Commission determined in the institution of the 1484 investigation that no public interest factors were implicated such that there was no delegation to the Administrative Law Judge in that investigation.

I. USE OF THE ACCUSED PRODUCTS IN THE UNITED STATES

The Accused Products are vertical power delivery systems, components thereof and computing systems containing the same that the Proposed Respondents import into the United States, sell for importation into the United States, and/or sell within the United States after importation. The Accused Products typically are used in high-performance computing and artificial intelligence hardware. The Accused Products power artificial intelligence accelerators, tensor processing units (‘TPU’), graphical processing units (‘GPU’) and central processing units (‘CPU’), which in turn fuel modern artificial intelligence implementations.

II. LACK OF HEALTH, SAFETY, OR WELFARE CONCERNS RELATING TO THE REQUESTED REMEDIAL ORDERS

Issuance of the requested remedial orders would have no adverse impact on the public health, safety, or welfare in the United States. Since enactment of the Trade Act of 1974, the Commission has precluded a remedy on public interest grounds only where the product involved pharmaceuticals, essential equipment for medical equipment, or key national interests—none of which are at play here. *Spansion*, 629 F.3d at 1360.

Although the Accused Products perform important functions in vertical power delivery systems and generate benefits for their customers and users, they do not implicate any public health, safety, or welfare concerns of the type contemplated by the Commission or its precedent. Nor will exclusion of the Accused Products cause any disruption to existing product offerings or services because, as explained *infra* at § III, certain OEMs have licensed the ‘734 patent, other OEMs and hyperscalers can license the ‘734 patent and there are substitutes available to fill the

gap, including Vicor's products. The strong interest in protecting intellectual property rights coupled with the absence of harm to any cognizable public interest supports the conclusion that the requested relief is in the public's interest. *See, e.g., Certain Baseband Processor Chips & Chipsets, Transmitter & Receiver (Radio) Chips, Power Control Chips, & Prods. Containing Same*, Inv No. 337-TA-543, Comm'n Op. at 136-37 (June 19, 2007).

III. THERE IS AMPLE PRODUCTION OF ALTERNATIVE ARTICLES WHICH CAN REPLACE THE ACCUSED PRODUCTS

The Proposed Respondents are suppliers in the competitive and expanding industry for vertical power delivery systems, components thereof and computing systems containing the same. The '734 patent has been licensed to leading OEMs and hyperscalers procuring their computing systems from Respondents. Furthermore, Vicor has offered licenses to other OEMs and hyperscalers using computing systems procured from Respondents. Furthermore, Vicor manufactures vertical power delivery systems which it supplies to customers with or without a license, with manufacturing capacity to replace the Proposed Respondents' unlicensed products being imported into the United States market.

Where, as here, domestic demand for the Accused products can be met by existing licenses, available licenses, the Complainant and other competitors, this public interest factor does not counsel against issuance of the requested relief. *See, e.g., Certain Lens Fitted Film Packages*, Inv. No. 337-TA-406, Comm'n Op. at 18 (June 28, 1999).

IV. ABSENCE OF A NEGATIVE IMPACT ON U.S. CONSUMERS

The requested remedial orders would not negatively impact consumers for the reasons already discussed: licensed substitutes or competitive substitutes abound, the exclusion of the Accused Products poses no public health or welfare concern, and, in any case, Vicor and its present OEM and hyperscaler licensees, as well as prospective OEM and hyperscaler licensees,

have the capacity to replace them. Further, even if the requested remedial orders result in minor price increases for certain products, such an increase would not be contrary to the public interest when, as here, it is overridden by “the public interest in protecting intellectual property rights.” *Certain Lens Fitted Film Packages*, Inv. No. 337-TA-406, Comm’n Op. at 18. Because customers of the Accused Products will continue to have the option of purchasing from Vicor, or from any other source under extant licenses or a future license, the Accused Products’ exclusion will not result in an adverse impact on U.S. consumers who purchase and/or benefit from the computing, artificial intelligence, and other related services that rely on the Accused Products.

V. ABSENCE OF AN ADVERSE IMPACT ON U.S. COMPETITIVE CONDITIONS

Excluding the Accused Products will benefit—not hurt—competitive conditions in the U.S. economy. Continuing to allow unlicensed entities like the Proposed Respondents to import and sell infringing products not only diminishes the value of Vicor’s hard-earned intellectual property and the licenses has Vicor granted; it also disincentivizes future investment in similar technology at a time when vertical power delivery systems and related computing system needs are rapidly expanding. *See Certain Display Controllers & Prods. Containing Same*, Inv. No. 337-TA-491/481, Comm’n Op. at 66 (Feb. 4, 2005). Given the public’s strong interest in the enforcement of U.S. intellectual property rights and the availability of like or competitive articles (and companies ready and eager to produce such articles), the requested remedial orders would not adversely affect competitive conditions in the U.S. economy.

Dated: September 8, 2026

Respectfully submitted,

/s/ Louis S. Mastriani

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**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

In the Matter of

CERTAIN VERTICAL POWER DELIVERY
SYSTEMS, COMPONENTS THEREOF,
AND COMPUTING SYSTEMS
CONTAINING THE SAME

Docket No. _____

**VERIFIED COMPLAINT OF VICOR CORPORATION
UNDER SECTION 337 OF THE TARIFF ACT OF 1930**

COMPLAINANT

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EXHIBIT LIST

Exhibit	Description
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Exhibit 2	Certified Assignment Records
Exhibit 3C	Confidential List of Licensees to the '734 Patent
Exhibit 4	Vicor Corporate Fact Sheet
Exhibit 5C	Confidential Domestic Industry Declaration of Vicor
Exhibit 6	Delta Company Profile
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Exhibit 8	Delta Global Operations
Exhibit 9	Infineon Company Profile
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Exhibit 35C	Infringement Claim Chart for Flex
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Exhibit 37C	Declaration of Phil Davies Regarding Importation
Physical Exhibit 1	Vertical Power Delivery System

APPENDICES

Appendix	Description
A1	Prosecution History of U.S. Patent No. 10,903,734
A2	Prosecution History for Priority Applications for U.S. Patent No. 10,903,734

I. INTRODUCTION

1. Vicor Corporation (“Vicor” or “Complainant”) requests that the United States International Trade Commission (“Commission”) institute an investigation pursuant to Section 337 of the Tariff Act of 1930, as amended, 19 U.S.C. § 1337, to remedy the unlawful importation, sale for importation, and/or sale after importation by the Proposed Respondents of certain vertical power delivery systems, components thereof, and computing systems containing the same (the “Accused Products”). The Accused Products infringe, either literally or under the doctrine of equivalents, certain claims of U.S. Patent No. 10,903,734 (the “’734 Patent”).

2. The Accused Products infringe at least the following claims of the ’734 Patent in violation of 19 U.S.C. § 1337(a)(1)(B)(i) and 35 U.S.C. § 271(a)–(c), either literally or under the doctrine of equivalents.

Accused Product	Asserted Claims
Delta VPD Modules and vertical power delivery systems, components thereof, and computing systems containing the same, including the Foxconn, Quanta, and Celestica Accused Products	1–8, 11–14, 18–26, 40–56, 65–71, 80, 81, 83, 84, 90–93, 95
Infineon VPD Modules and vertical power delivery systems, components thereof, and computing systems containing the same	1, 2, 8, 40, 45, 53, 67, 68, 81, 83, 84, 90
Luxshare VPD Modules and vertical power delivery systems, components thereof, and computing systems containing the same, including the Foxconn, Quanta, and Celestica Accused Products	1–8, 11–14, 40–45, 53, 67, 68, 81, 83, 84, 90
MPS VPD Modules and vertical power delivery systems, components thereof, and computing systems containing the same, including the Foxconn, Quanta, and Celestica Accused Products	1, 2, 8, 40, 67, 68, 81, 83, 84, 90
Flex VPD Modules and vertical power delivery systems, components thereof, and computing systems containing the same, including the Foxconn, Quanta, and Celestica Accused Products	1–8, 11–14, 18–26, 40–56, 65–71, 80, 81, 83, 84, 90–93, 95

3. The '734 Patent, *see* Exhibit 1, is a valid and enforceable United States Patent, the entire right, title, and interest to which Vicor owns by assignment. *See* Exhibit 2.

4. The Proposed Respondents are Delta Electronics, Inc., Delta Electronics (Americas) Ltd., and DET Logistics (USA) Corporation (collectively, "Delta Respondents" or "Delta"); Infineon Technologies AG ("Infineon"), Luxshare Precision Industry Co., Ltd. and Dongguan Luxshare Technology Co., Ltd. a/k/a Luxshare-Tech (together, "Luxshare Respondents" or "Luxshare"); Monolithic Power Systems, Inc., Chengdu Monolithic Power Systems Co., Ltd., and MPS International (Shanghai) Ltd. (collectively, "MPS Respondents" or "MPS"); Flex Ltd. ("Flex"), Celestica Inc. ("Celestica"), Quanta Computer Inc., Quanta Cloud Technology Inc., Quanta Cloud Technology USA LLC, and Quanta Computer USA Inc. (collectively, "Quanta Respondents" or "Quanta"); and Hon Hai Precision Industry Co. Ltd., d/b/a Foxconn, Foxconn Industrial Internet Co. Ltd., FII USA Inc. (a/k/a Foxconn Industrial Internet USA Inc.), Ingrasys Technology Inc., and Ingrasys Technology USA Inc. (collectively, "Foxconn Respondents" or "Foxconn").

5. As set forth in this Complaint, on information and belief, each of the Proposed Respondents unlawfully imports into the United States, sells for importation into the United States, sells in the United States after importation, and/or instructs other Proposed Respondents regarding the use, manufacture, importation, and/or sale of one or more Accused Products that infringe the '734 Patent, either literally or under the doctrine of equivalents.

6. A domestic industry exists under 19 U.S.C. § 1337(a)(2) and (3) as the result of Vicor's activities and investments in the United States relating to products that practice the '734 Patent. These activities include Vicor's past and continuing substantial investments in domestic

plants, equipment, labor, and capital devoted to Vicor's power converter modules that practice one or more claims of the '734 Patent.

7. Vicor seeks, as relief for the unfair acts of Proposed Respondents, the following relief from the Commission: (i) a limited exclusion order barring from entry into the United States the Accused Products manufactured by or on behalf of, or imported by or on behalf of, the Proposed Respondents that infringe the '734 Patent; (ii) a cease and desist order prohibiting the sale for importation, importation, sale after importation, use, distribution, offer for sale, promotion, marketing, advertising, testing, warehousing of inventory for distribution, solicitation of sales, programming, repair, maintenance, transfer, and other commercial activity relating to the Accused Products; (iii) the imposition of a bond on the importation and sales of the Accused Products during the Presidential Review Period pursuant to 19 U.S.C. § 1337(j)(3); and (iv) such other relief as the Commission deems appropriate.

II. THE PARTIES

A. Complainant

8. Complainant Vicor Corporation is a Delaware corporation with its principal place of business at 25 Frontage Road, Andover, MA 01810. Vicor is the sole owner of all right, title, and interest in the '734 Patent.

9. Vicor is a NASDAQ-listed public company that was founded in 1981 in Massachusetts by Dr. Patrizio Vinciarelli. Dr. Vinciarelli, the inventor of the patent asserted in this Complaint, remains Vicor's CEO to this day.

10. Headquartered in the United States, Vicor is a leading provider of high-performance power converter modules and power distribution architectures for use in computer systems, artificial intelligence (AI) servers, datacenters, industrial equipment and automation,

robotics, UAVs, vehicles and transportation, satellites, and aerospace and defense. *See* Exhibit 4 at 3.

11. Vicor manufactures its power converter modules at facilities exclusively located in the United States. In all, Vicor employs approximately 1,000 people in the United States, primarily in Massachusetts and Rhode Island. Confidential Exhibit 5C at 6.

12. Vicor has a portfolio of patents to converter topologies, control systems, power components and distribution architectures, including Factorized Power (FPA) and Vertical Power Delivery (VPD), enabling superior efficiency, power density and current density, including the '734 Patent asserted here. Due to the Proposed Respondents' unlawful importation of certain VPD systems, components thereof, and computing systems containing the same that infringe the '734 Patent, Vicor's market standing and domestic industry relating to the '734 Patent have been injured.

13. As a domestic developer and manufacturer of high-performance technology products that practice its patent, Vicor and its domestic industry represent precisely what Section 337 was designed to protect. Vicor's ability to protect its proprietary technology through, *inter alia*, enforcement of its patent rights is important to the continued success of its domestic industry, including U.S.-based product design, development, and manufacturing activities.

B. Proposed Respondents

1. Delta Respondents

14. Proposed Respondent Delta Electronics, Inc. is a Taiwanese public company with its principal place of business at 186, Ruey Kuang Road, Neihu District, Taipei 114501, Taiwan. It has Proposed Respondents Delta Electronics (Americas) Ltd. and DET Logistics (USA) Corporation as its subsidiaries. Delta Electronics (Americas) Ltd. is a U.S. company with its principal place of business at 46101 Fremont Blvd., Fremont, CA 94538. DET Logistics (USA)

Corporation is a U.S. company and has its principal place of business at 46101 Fremont Blvd., Fremont, CA 94538. The Complaint refers to Delta Electronics, Inc., Delta Electronics (Americas) Ltd., and DET Logistics (USA) Corporation, collectively as the “Delta Respondents” or “Delta.”

15. Delta describes itself as “a global provider of power and thermal management solutions.” Exhibit 6 at 1.

16. Delta imports into the United States, sells for importation, and/or sells within the United States after importation certain vertical power delivery systems, components thereof and/or computing systems containing the same that infringe the ’734 Patent. *See* Exhibits 7, 8, and 37C.

2. Infineon Respondent

17. Proposed Respondent Infineon Technologies AG (“Infineon”) is a German public company with its principal place of business at Am Campeon 1-12 D-85579 Neubiberg/Munich, Federal Republic of Germany.

18. Infineon describes itself as providing, among other things, “[h]ighest density end-to-end power management solutions including integrated smart power stages, digital multi-phase controllers, integrated POL converters, digital power controllers and power modules.” Exhibit 9 at 1.

19. Infineon imports into the United States, sells for importation, and/or sells within the United States after importation certain vertical power delivery systems, components thereof and/or computing systems containing the same that infringe the ’734 Patent. *See* Exhibits 10, 11.

3. Luxshare Respondents

20. Proposed Respondent Luxshare Precision Industry Co., Ltd. (“Luxshare”) is a Chinese public company with its principal place of business at 313 Beihuan Road, Qingxi Town, Dongguan, Guangdong, 523642, China. It has Proposed Respondent Dongguan Luxshare Technology Co., Ltd. a/k/a Luxshare-Tech (“Luxshare-Tech”) as its subsidiary. Luxshare-Tech is

a Chinese company with its company address at 8th Floor, Digital Technology Industrial Park, CIMC Industrial City, No. 1 Yile Road, Songshan Lake High-Tech Zone, Dongguan City, Guangdong, PRC. The Complaint refers to Luxshare Precision Industry Co., Ltd. and Luxshare-Tech collectively as the “Luxshare Respondents” or “Luxshare.”

21. Luxshare describes itself as “providing integrated intelligent solutions, parts, modules and systems for enterprise communication products . . . consumer electronic products . . . and automobile systems.” Exhibit 12 at 1.

22. Luxshare imports into the United States, sells for importation, and/or sells within the United States after importation certain vertical power delivery systems, components thereof and/or computing systems containing the same that infringe the ’734 Patent. *See* Exhibits 12, 13.

4. MPS Respondents

23. Proposed Respondent Monolithic Power Systems Inc. (“MPS”) is an American public company with its principal place of business at 5808 Lake Washington Blvd. NE, Kirkland, Washington 98033. It has as its subsidiaries Proposed Respondents Chengdu Monolithic Power Systems Co., Ltd., a Chinese company with the business address #8 Kexin Road, Hi-Tech Comprehensive Bonded Zone, Chengdu, Sichuan, 611731, China, and MPS International (Shanghai) Ltd., a Chinese company with the business address Suite 704-705, Tian An Centre, No. 338 Nanjing Road (West), Shanghai, 200003, China. The Complaint refers to Monolithic Power Systems Inc., Chengdu Monolithic Power Systems Co., Ltd., and MPS International (Shanghai) Ltd. collectively as the “MPS Respondents” or “MPS.”

24. MPS describes itself as “re-imagining and re-defining the possibilities of high-performance power solutions in industrial applications, telecom infrastructures, cloud computing, automotive, and consumer applications.” Exhibit 14 at 1.

25. MPS imports into the United States, sells for importation, and/or sells within the United States after importation certain vertical power delivery systems, components thereof and/or computing systems containing the same that infringe the '734 Patent. *See* Exhibit 15.

5. Flex Respondent

26. Proposed Respondent Flex Ltd. ("Flex") is a Singaporean public company with its principal place of business at 12515-8 Research Blvd, Suite 300, Austin, Texas 78759.

27. Flex describes itself as providing "[d]ata center infrastructure solutions for a connected world." Exhibit 16 at 1.

28. Flex imports into the United States, sells for importation, and/or sells within the United States after importation certain vertical power delivery systems, components thereof and/or computing systems containing the same that infringe the '734 Patent. *See* Confidential Exhibit 17C.

6. Celestica Respondent

29. Proposed Respondent Celestica Inc. ("Celestica") is a Canadian company with its principal place of business at 5140 Yonge Street, Suite 1900 Toronto, Ontario, Canada.

30. Celestica describes itself, in part, as "a leader in power electronics." Exhibit 21 at 1.

31. Celestica imports into the United States, sells for importation, and/or sells within the United States after importation certain vertical power delivery systems, components thereof and/or computing systems containing the same that infringe the '734 Patent. *See* Exhibits 17C, 18, 19, and 22C.

7. Quanta Respondents

32. Proposed Respondent Quanta Computer Inc. ("Quanta") is incorporated in Taiwan with its principal place of business at No. 211, Wenhua 2nd Rd., Guishan Dist., Taoyuan City 333,

Taiwan; and has as its subsidiaries Proposed Respondents Quanta Cloud Technology Inc., Quanta Cloud Technology USA LLC, and Quanta Computer USA, Inc. Quanta Cloud Technology Inc. has its principal place of business at 1F, No. 211 Wenhua 2nd Rd., Guishan Dist., Taoyuan City 33377, Taiwan. Quanta Cloud Technology USA LLC has its principal place of business at 1010 Rincon Circle San Jose, CA 95131. Quanta Computer USA, Inc. has its principal place of business at 45630 Northport Loop East, Fremont, CA 94538. The Complaint refers to Quanta Computer Inc., Quanta Cloud Technology Inc., Quanta Cloud Technology USA LLC, and Quanta Computer USA, Inc. collectively as the “Quanta Respondents” or “Quanta.”

33. Quanta describes itself, in part, as “a leading solution provider in cloud computing.” Exhibit 23 at 1.

34. Quanta imports into the United States, sells for importation, and/or sells within the United States after importation certain vertical power delivery systems, components thereof and/or computing systems containing the same that infringe the ’734 Patent. *See* Exhibits 19, 22C, and 37C at ¶12.

8. Foxconn Respondents

35. Proposed Respondent Hon Hai Precision Industry Co., Ltd. (d/b/a Foxconn) (“Foxconn”) is incorporated in Taiwan with its principal place of business at No. 2, Zihyou St., Tucheng Dist., New Taipei City 236, Taiwan; and has as its subsidiaries Proposed Respondents Foxconn Industrial Internet Co. Ltd., FII USA Inc. (a/k/a Foxconn Industrial Internet USA Inc.), Ingrasys Technology Inc., and Ingrasys Technology USA Inc. Foxconn Industrial Internet Co. Ltd. is organized under the laws of China, with its principal place of business at 2F C1 Foxconn Technology Park 2 Donghuan 2 Road Longhua, Shenzhen, 518109 China. FII USA Inc. is a U.S. company with its principal place of business at 611 East Wisconsin Avenue, Milwaukee, Wisconsin 53202. Ingrasys Technology Inc. is organized under the laws of Taiwan with its

principal place of business at 5F., No. 1188, Nanqing Rd., Luzhu Dist., Taoyuan City, Taiwan. Ingrasys Technology USA Inc. is a U.S. company with its principal place of business at 2025 Gateway Place, Ste. 190, San Jose, CA 95110. The Complaint refers to Hon Hai Precision Industry Co. Ltd., Foxconn Industrial Internet Co. Ltd., FII USA Inc., Ingrasys Technology Inc., and Ingrasys Technology USA Inc. collectively as the “Foxconn Respondents” or “Foxconn.”

36. Foxconn is an international electronics manufacturer. *See* Exhibit 24 at 2.

37. Foxconn imports into the United States, sells for importation, and/or sells within the United States after importation certain vertical power delivery systems, components thereof and/or computing systems containing the same that infringe the ’734 Patent. *See* Exhibits 19, 22C, and 37C at ¶12.

III. THE TECHNOLOGY AND PRODUCTS AT ISSUE

A. The Accused Products at Issue

38. Proposed Respondents infringe the ’734 Patent through the sale for importation into the United States, importation into the United States, and/or sale within the United States after importation of the Accused Products.

39. Specifically, Proposed Respondents Delta, Luxshare, Flex, MPS, and Infineon have infringed Vicor’s patented Vertical Power Delivery (“VPD”) architecture using multi-cell converters, with a capacitive layer, lateral connections and inter-digitation, to supply high current density ASICs, including GPUs and TPUs. Exemplary identifications of infringing Accused Products are described in the infringement charts attached at Exhibits 27, 29C, 31, 33, and 35C.

40. Proposed Respondents Celestica, Foxconn, and Quanta infringe Vicor’s patented technology by making vertical power delivery systems and computing systems containing the same, including, for example, those sold to Google for use in Google TPUs.

41. Without discovery, Vicor cannot exhaustively identify all VPD systems, components thereof, and computing systems containing the same that are sold for importation into the United States, imported into the United States, and/or sold within the United States after importation that infringe the '734 Patent. Vicor reserves the right to supplement its allegations, to further amend this Complaint, and to add Respondents, Asserted Patents, and Accused Products in the future, if necessary, based on discovery received during the investigation.

B. History of the Relevant Technology and Market

42. Modern artificial intelligence implementations rely on “AI engines” whose performance is fueled by high current density “XPU.” These XPUs range from Wafer Scale Engines (“WSE”) to fractional dies, including Graphic Processing Units (“GPUs”), Tensor Processor Units (“TPUs”), or Central Processing Units (“CPUs”). Such XPUs may be powered at the lowest functional voltage (e.g., 0.7V) at rising current levels ranging from 300A to 30,000A. High current density is therefore critical to enabling modern artificial intelligence implementations.

43. Many modern artificial intelligence implementations are hosted in datacenters powered from a higher voltage source (e.g., 13,900Vac) through a series of conversion “stages” to a low voltage (e.g., 0.7Vdc). The last power conversion stage (e.g., what is known as Point of Load (“POL”) converters) typically sits on circuit boards next to XPUs.

44. A long-standing challenge in distributing power to XPUs has been the “last inch”, *i.e.*, the final stretch of Lateral Power Delivery (“LPD”) between POL converters and XPUs. To make room for bypass capacitors mounted to the XPU’s back side, POL converters were relegated to a lateral location nearly one inch away. Electrical resistance on the PCB across this distance (nearly 0.5mOhm across one “square” of 1 Oz copper) gave rise to the “last inch problem”: at

500A of processor current, a square of 1 Oz copper would dissipate roughly 125W, more than an incandescent light bulb.

45. Vicor’s patented innovation overcame the “last inch problem” by using a Vertical Power Delivery (“VPD”) system comprising, in a vertical stack, a “multi-cell” POL converter and a “Gearbox” that includes a capacitive layer, lateral connections, and inter-digitation between the output terminals of the multi-cell converter and the input power terminals to the XPU. As pioneered and patented by Vicor, VPD enables the Cerebras CS-3 (the fastest AI computer as of June 2026) to train and run giant generative AI models through its third generation Wafer-Scale Engine 3 (WSE-3), which draws up to 30,000A at 0.7V.

46. Specifically, Cerebras approached Vicor in 2017 to provide a power system capable of feeding its Wafer-Scale Engine 1 (WSE-1), the industry’s first wafer-scale processor, which is a single-die AI chip that is the size of a dinner plate rather than the traditional postage stamp size. Because standard microchips are constrained by the size of a manufacturing “reticle”, hundreds of small dies are traditionally cut from a single silicon wafer. Cerebras shattered this paradigm by utilizing the entire 300mm silicon wafer as a single processor.

47. To power the Cerebras WSE-1, Vicor proposed a VPD system using a multi-cell converter, a capacitive layer, lateral connections, and inter-digitation. Since 2017, Vicor has been the supplier of VPD systems for WSE-1, WSE-2, and the WSE-3, which is the engine behind the Cerebras CS-3 that has been used to train massive one trillion parameter large language models.

48. In 2017, Google approached Vicor to provide a power conversion solution for Google’s Tensor Processing Units (TPUs). Google TPUs are ASICs that accelerate machine learning workloads. By 2018, Vicor provided a VPD system tailored to the TPU including a Geared Current Multiplier (“GCM”) module. In its vertical stack, the GCM comprised a multi-cell

converter and a Gearbox with a capacitive layer, lateral connections, and inter-digitation between the multi-cell converter and the TPU power terminals.

49. Vicor provided its VPD power system architecture, as pioneered for Cerebras, with the current density sought by Google for its fifth generation TPUs (TPUv5). But Google wanted unfettered access to VPD from a multiplicity of sources it would select.

50. To this end, on the heels of weekly Vicor-CONFIDENTIAL presentations, attending Google engineers published articles about Vicor's VPD architecture without permission from, or credit to, Vicor. Authors were offered cash bonuses for such publications under the auspices of a Google platform (TDCcommons) providing "defensive" technical disclosures. The names of the authors were subsequently deleted from their publications. Google then engaged other suppliers, including Proposed Respondents, to begin manufacturing power systems using Vicor's VPD architecture. The Proposed Respondents' subsequent infringement of Vicor's intellectual property undermines Vicor's investment in mission-critical research and development. The infringing products are part of the supply chain for Google TPUs. Confidential Exhibit 37C. Google has now progressed beyond TPUv5, and each of the Proposed Respondents has participated in or currently participates in the supply chain for TPUv5, TPUv6, and/or TPUv7. *Id.* Vicor has lost business to the Proposed Respondents – business that the Proposed Respondents obtained by infringing Vicor's patented technology.

C. Plain Language Statement of the Category of Accused Products

51. Pursuant to 19 C.F.R. §§ 210.10(b)(1), the plain language description of the accused products or category of accused products, which defines the scope of the investigation, is "vertical power delivery systems and components thereof, used in data center server, artificial intelligence and cloud computing systems, to power artificial intelligence ('AI') accelerators, tensor processing

units ('TPU'), graphical processing units ('GPU') and central processing units ('CPU'), and computing systems containing the same."

IV. THE ASSERTED PATENT

52. U.S. Patent No. 10,903,734 (the '734 Patent) relates to certain vertical power delivery systems, components thereof, and computing systems containing the same used in applications requiring high density and high efficiency, such as high-end computing.

53. The identification, ownership, non-technical description, foreign counterparts, and licenses for the asserted Patent are identified below.

A. Identification of the '734 Patent and Ownership by Vicor

54. The '734 Patent, titled "Delivering Power to Semiconductor Loads," issued on January 26, 2021, from U.S. Patent Application No. 16/218,418, filed on Dec. 12, 2018, which is a Continuation - in - part of application No. 15 / 616,288, filed on June 7, 2017, now Pat. No. 10,277,105, which is a continuation - in - part of application No. 15/091,346, filed on Apr. 5, 2016, now Pat. No. 10,158,357. Patrizio Vinciarelli is the named inventor of the '734 Patent. The '734 Patent is attached as Exhibit 1 and is incorporated by reference.

55. Vicor owns by assignment the entire right, title, and interest in the '734 Patent. The recorded assignments transferring title of the '734 Patent from the inventor to Vicor are attached as Exhibit 2.

56. The '734 Patent is valid, enforceable, and currently in full force and effect. The '734 Patent expires on June 2, 2036.

B. Non-Technical Description of the '734 Patent¹

57. The '734 Patent relates to what is now known as Vertical Power Delivery or “VPD”. By stacking a “multi-cell converter” with a “Gearbox” including a capacitive layer, lateral translations, and inter-digitation, VPD reduces power distribution losses and enables superior current density, power density and efficiency. VPD overcomes the “last inch problem” of Lateral Power Delivery.

58. The below figure from the patent shows an exemplary 2x2 array of VPD modules as components of a VPD system for a Cerebras Wafer Scale Engine (“WSE”). The WSE is powered by an array of 84 modules, one for each of 84 reticles within the wafer. The WSE is fueled at up to 30,000A at 0.7V. Each VPD module resides above a WSE reticle. Power to each WSE reticle flows vertically from a 54V source at the top of the VPD module to the wafer reticle at its bottom. As shown in the figure, and disclosed in the '734 Patent, the exemplary VPD modules comprise a multiplicity of layers, including a multi-cell converter and a Gearbox providing a capacitive layer, lateral connections, and inter-digitation.

¹ This and other Non-Technical Descriptions throughout the Complaint are exemplary and non-limiting and are not intended to construe or limit the '734 Patent's scope or meaning in any way.

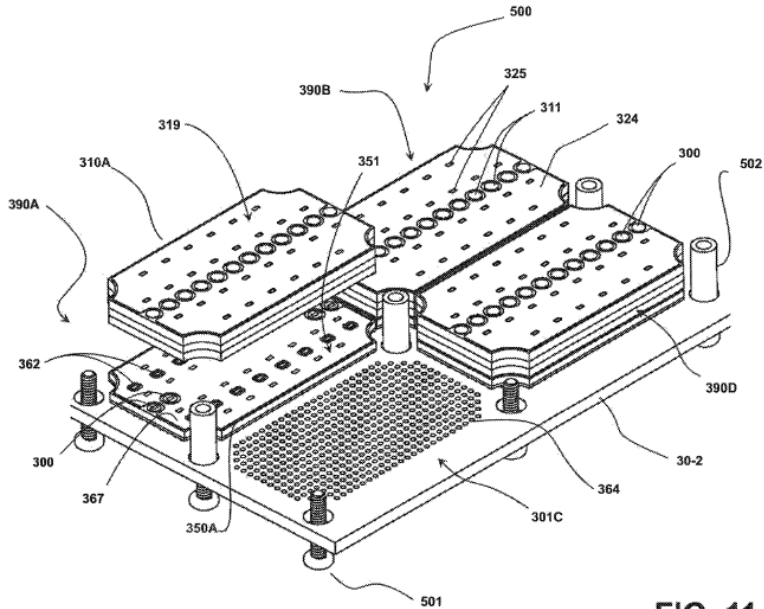


FIG. 11

59. The patented technology has applications in high-performance computing, as well as in communications and network infrastructure that have extreme current density requirements, greater than $1\text{A}/\text{mm}^2$, provided by VPD. VPD enables AI and its growth trajectory because of the extreme current density demands of AI processing.

C. Foreign Counterparts to the '734 Patent

60. Pursuant to Commission Rule 210.12(a)(9)(v), there are no foreign patents, foreign patent applications (not already issued as a patent), or foreign or domestic patent applications corresponding to the '734 Patent that have been denied, abandoned, or withdrawn.

D. Licensees

61. Pursuant to Commission Rule 210.12(a)(9)(iii), the '734 Patent is licensed to Original Equipment Manufacturers of AI computing systems identified in Exhibit 3C. However,

Vicor is not relying upon any licensee to establish standing or to satisfy the domestic industry requirement.

V. THE DOMESTIC INDUSTRY

62. A domestic industry exists in the United States as defined under 19 U.S.C. § 1337(a)(2) and (3), as a result of Vicor’s continuing significant investment in plant and equipment, significant employment of labor and capital, and substantial investment in exploitation, including engineering, research, and development, with respect to articles protected by the ’734 Patent.

A. Technical Prong: Vicor’s Practice of the ’734 Patent

63. Vicor makes significant and substantial investments in plant and equipment, labor and capital, and engineering, research, and development with respect to products that practice one or more claims of the ’734 Patent (the “Domestic Industry Products”), including Vicor’s DCM3017S58A01C9T01 (“DCM3017”) power module. Other products in the DCM product family, as well as the MCM, MCD, GBX, and GCM product families, practice the ’734 Patent.

64. An exemplary claim chart showing how the Vicor Domestic Industry Products practice exemplary independent claims of the ’734 Patent is attached as Confidential Exhibit 25C. This claim chart provides a basis for the technical domestic industry relating to the ’734 Patent. The following table identifies the exemplary Vicor Domestic Industry Product and corresponding exemplary practiced claims.

Exemplary Domestic Industry Product	Exemplary Claims
Vicor DCM3017S58A01C9T01	1–14, 18–26, 40–62, 65–74, 76–77, 80–84, 88, 90–95

B. Economic Prong: Vicor's Domestic Industry Activities and Investments

65. Vicor was founded in Massachusetts in 1981 and has been headquartered there ever since. Vicor conducts virtually all its research, design, development, engineering, manufacturing, and testing related to its products in the United States. As described in detail below, Vicor engages in a broad range of qualifying domestic industry activities in the United States directed to the Domestic Industry Products protected by the Asserted Patent. Vicor has multiple product families that practice one or more of the claims in the Asserted Patent: DCM, MCM, MCD, GBX, and GCM products. These are the Domestic Industry Products.

66. Vicor has made and continues to make significant investments in plants and equipment with respect to the Domestic Industry Products. Those investments are dedicated to research, design, development, engineering, product support, manufacturing, manufacturing support, firmware development, testing, and various customer technical support activities, as well as sales and marketing activities, focused on the Domestic Industry Products.

67. Vicor has made and continues to make significant investments in labor and capital with respect to the Domestic Industry Products. Those investments in labor and capital are likewise dedicated to research, development, design, engineering, product support, manufacturing, manufacturing support, firmware development, testing, and various customer technical support activities focused on the Domestic Industry Products.

68. Vicor further engages in the exploitation of the Asserted Patent through its substantial domestic investments in engineering, research, and development activities directed to the Domestic Industry Products, which are protected by the Asserted Patent. These activities include, *inter alia*, engineering, research, development, and design tied to the claimed technology implemented in hardware, software, and firmware in the Domestic Industry Products. These

activities have occurred in the past and are ongoing with respect to future versions of Vicor Domestic Industry Products.

69. Vicor's technical and production activities directed to the Domestic Industry Products take place primarily at its Andover, Massachusetts, facilities but also occur at facilities in California, Illinois, and Rhode Island. *See Confidential Exhibit 5C at 3.*

70. Vicor's investments and activities are significant and substantial both in absolute terms and relative to Vicor's overall operations, taking into account the nature of such expenditures in the VPD industry at large, Vicor's relative size, and the relative importance of Vicor's domestic operations compared to its limited activities overseas.

71. Vicor's investments and activities are critically important to the protected Domestic Industry Products and represent significant domestic added value, especially given the fact that the protected Domestic Industry Products, as manufactured by Vicor, are wholly designed, developed, and produced in the United States. Moreover, Vicor's investments and activities are significant and substantial in the context of comparable products, the company's overall investments, and the relevant marketplace.

72. Vicor's foreign product-related investments and activities related to the Domestic Industry Products, by contrast, are relatively minor compared to the same activities undertaken by Vicor in the United States.

73. The activities and investments described above are explained in detail in the confidential Declaration of Kemble Morrison, attached as Confidential Exhibit 5C.

VI. SPECIFIC INSTANCES OF IMPORTATION AND SALE

74. The Proposed Respondents import, sell for importation, and/or sell within the United States after importation certain vertical power delivery systems, components thereof, and

computing systems containing the same, that infringe, or are used to infringe, at least one valid and enforceable claim of the '734 Patent.

75. The Proposed Respondents' infringing products are not off-the-shelf products that are commercially available to the public through traditional sales channels. Instead, the infringing products are sold through individual company-to-company sales orders. Confidential Exhibit 37C at ¶5.

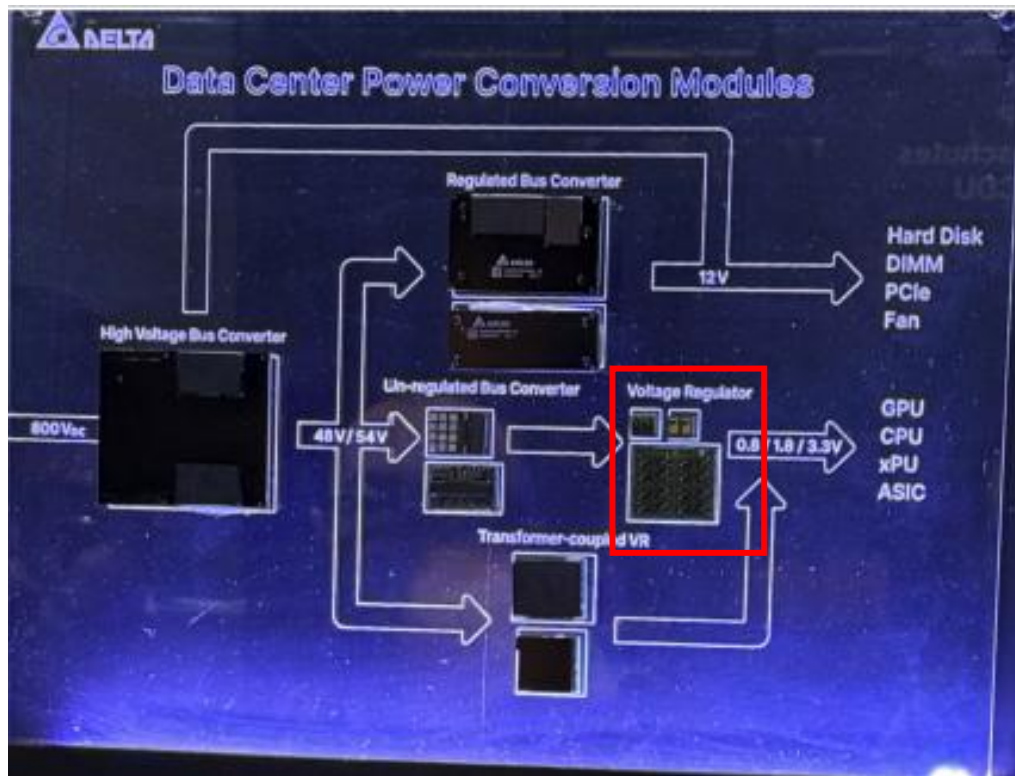
76. Pursuant to Commission Rule 210.12(a)(3), the following evidence establishes that the Proposed Respondents import, sell for importation, and/or sell within the United States after importation certain vertical power delivery systems, components thereof, and computing systems containing the same (*e.g.*, TPU Boards that include vertical power delivery systems). The specific instances of importation, sale for importation, and/or sale after importation of infringing VPD systems, components thereof, and computing systems containing the same set forth below are illustrative and non-exhaustive examples of the Proposed Respondents' unlawful importation and/or sale of infringing products. Additional information regarding the Respondents' importation activities is included in the Declaration of Phil Davies, attached as Confidential Exhibit 37C.

A. Delta Respondents

77. Delta is importing, selling for importation, and/or selling within the United States after importation infringing products, for example, Delta VPD Modules ("Delta Accused Products"). The specific instance set forth below is a representative example of Delta's unlawful importation, sale for importation, and/or sale within the United States after importation of infringing products.

78. Delta showed a Delta Accused Product in October 2025 at the Open Compute Project Global Summit ("OCP Summit"), which is a computing trade show focusing on hyperscale data centers, edge computing, and AI infrastructure. The trade show took place within the United

States in San Jose, California. An individual attended the trade show and took the below photographs of the Delta Accused Product on display. *See Exhibit 7.* The red rectangle highlights the accused VPD system.



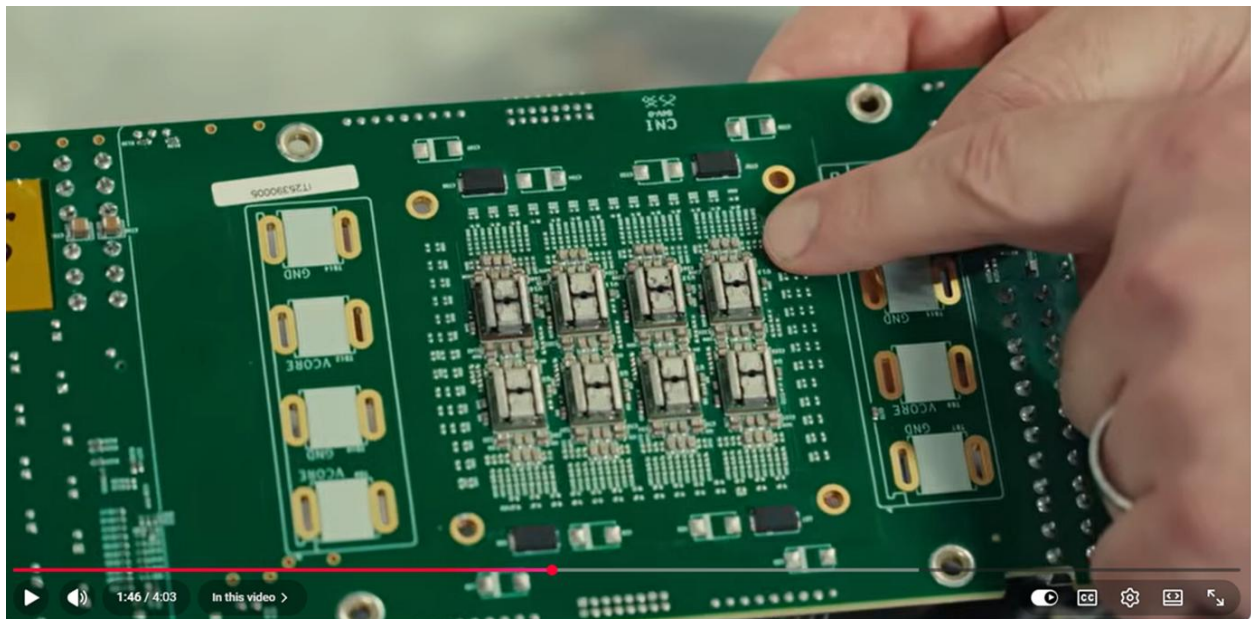
79. The Delta Accused Product was not made in the United States and thus was brought into the country by Delta for the trade show. According to Delta's website, Delta's manufacturing facilities for the Accused Products are outside of the United States such that Delta necessarily imported the Delta Accused Product into the United States. *See Exhibit 8* (identifying Delta's manufacturing plants as located entirely outside the United States with only sales offices located in the United States).

80. Because Delta manufactures Delta Accused Products outside of the United States, and such products are used in the United States, Delta necessarily is importing, selling for importation, and/or selling after importation such infringing products within the United States.

B. Infineon Respondent

81. Infineon is importing, selling for importation, and/or selling within the United States after importation infringing products (“Infineon Accused Products”), for example, the TDM24545S, which is a VPD module. The specific instances set forth below are representative examples of Infineon’s unlawful importation, sale for importation, and/or sale within the United States after importation of infringing products.

82. First, Infineon displayed a TDM24545S in March 2026 at the Applied Power Electronics Conference (“APEC”), which is a power electronics trade show. The trade show took place within the United States in San Antonio, Texas. A social media video shows Infineon’s display. *See* Exhibit 10. A screenshot of the video, showing the TDM24545S in a VPD assembly, is included below. Infineon promotes its TDM24545S as “optimized for VPD” [<https://www.infineon.com/technology/ai/we-power-ai/vrm>].



83. On information and belief, the TDM24545S was not made in the United States because Infineon’s backend and module-assembly manufacturing facilities are located outside of the United States. *See* Exhibit 37C at ¶7.

84. Second, Infineon provides a silicon integrated power-stage solution called OptiMOS for Delta's Vertical Power Delivery Modules. *See* Exhibit 11. The complete DC-DC converter includes both the power stages, provided by Infineon, and a multiphase digital controller. Thus, whenever Delta imports an infringing VPD module, it includes an infringing Infineon Accused Product. In sum, Infineon is involved in two different levels of the supply chain: with its own VPD modules and separately also making components for Delta's VPD modules.

85. Because Infineon manufactures Infineon Accused Products outside of the United States, and such products are used in the United States, Infineon necessarily is importing, selling for importation, and/or selling after importation such infringing products within the United States.

C. Luxshare Respondents

86. Luxshare is importing, selling for importation, and/or selling within the United States after importation, infringing products, for example, the Luxshare VPD Modules ("Luxshare Accused Products"). The specific instance set forth below is a representative example of Luxshare's unlawful importation, sale for importation, and/or sale within the United States after importation of infringing products.

87. In October 2025, Luxshare displayed a Luxshare VPD Module at the October 2025 OCP Summit in San Jose, California. An individual attended the trade show and took photographs of the Luxshare VPD Module, and accompanying posted information, on display. *See* Exhibit 13.

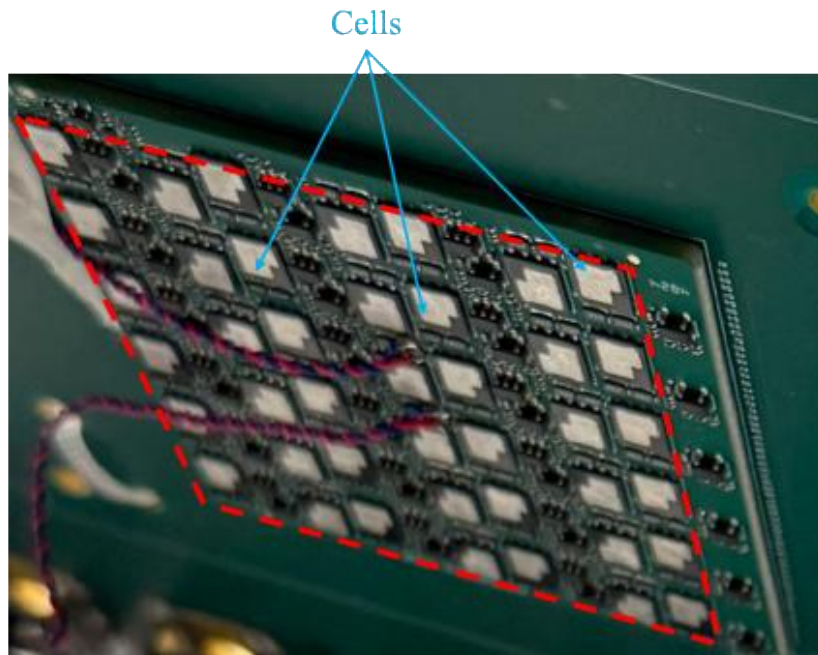


Exhibit 13 (red square and blue arrows added to photograph for clarity)

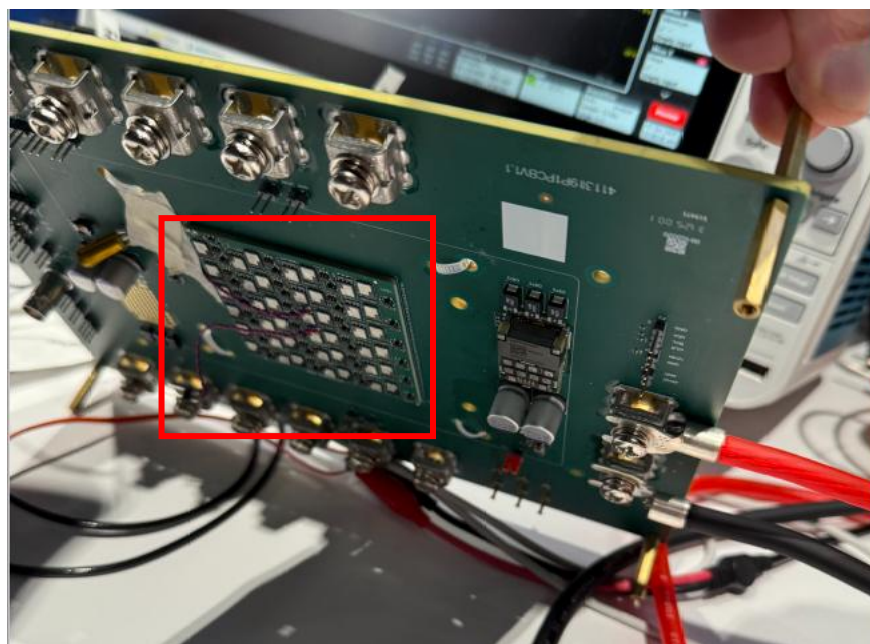


Exhibit 13 (red square added to show relevant part)

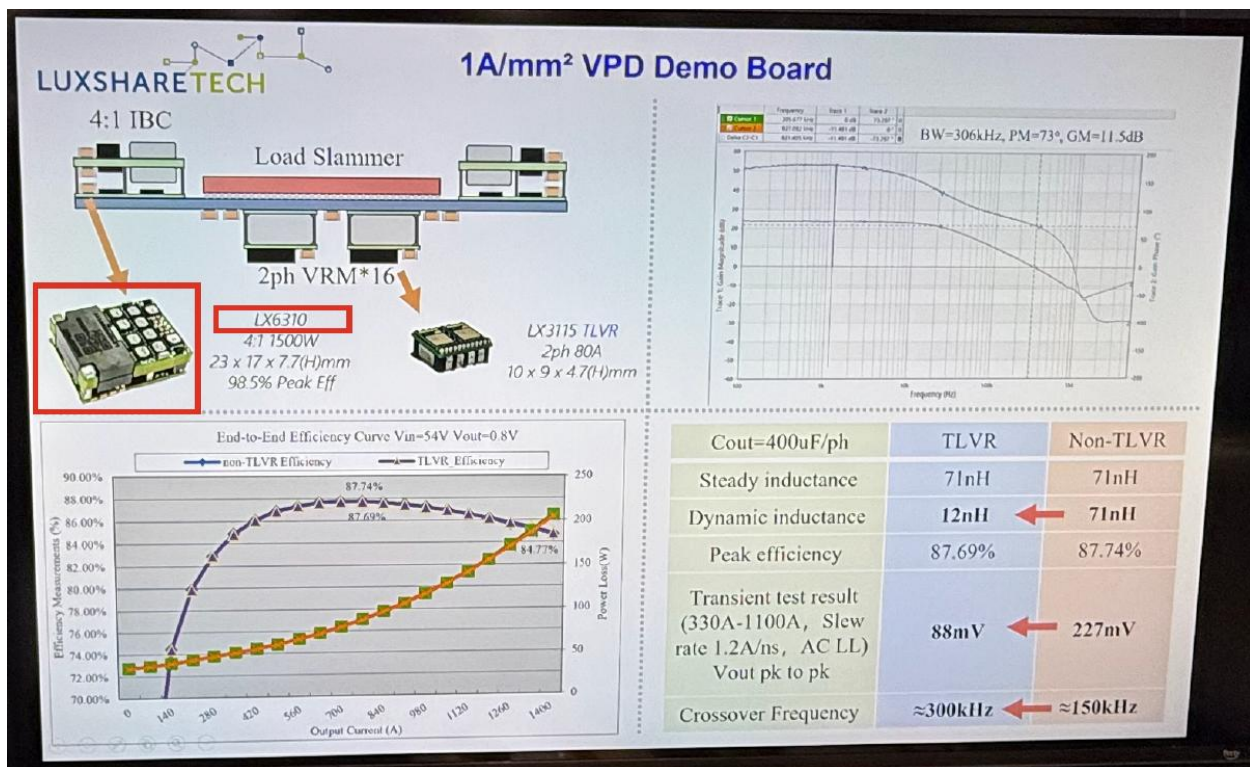


Exhibit 13 (Luxshare OCP demo explanation)

88. Luxshare has no production facilities in the United States such that Luxshare necessarily imported the VPD Module into the United States. *See* Exhibit 12 at 3 (Luxshare’s website listing only production facilities outside of the United States).

89. Because Luxshare manufactures the Luxshare VPD Module outside of the United States, and such products are used in the United States, Luxshare necessarily is importing, selling for importation, and/or selling after importation such infringing products within the United States.

D. MPS Respondents

90. MPS is importing, selling for importation, and/or selling within the United States after importation infringing products (“MPS Accused Products”), for example, the MPC2M110-L, which is a VPD module. The specific instance set forth below is a representative example of MPS’s unlawful importation, sale for importation, and/or sale within the United States after importation of infringing products.

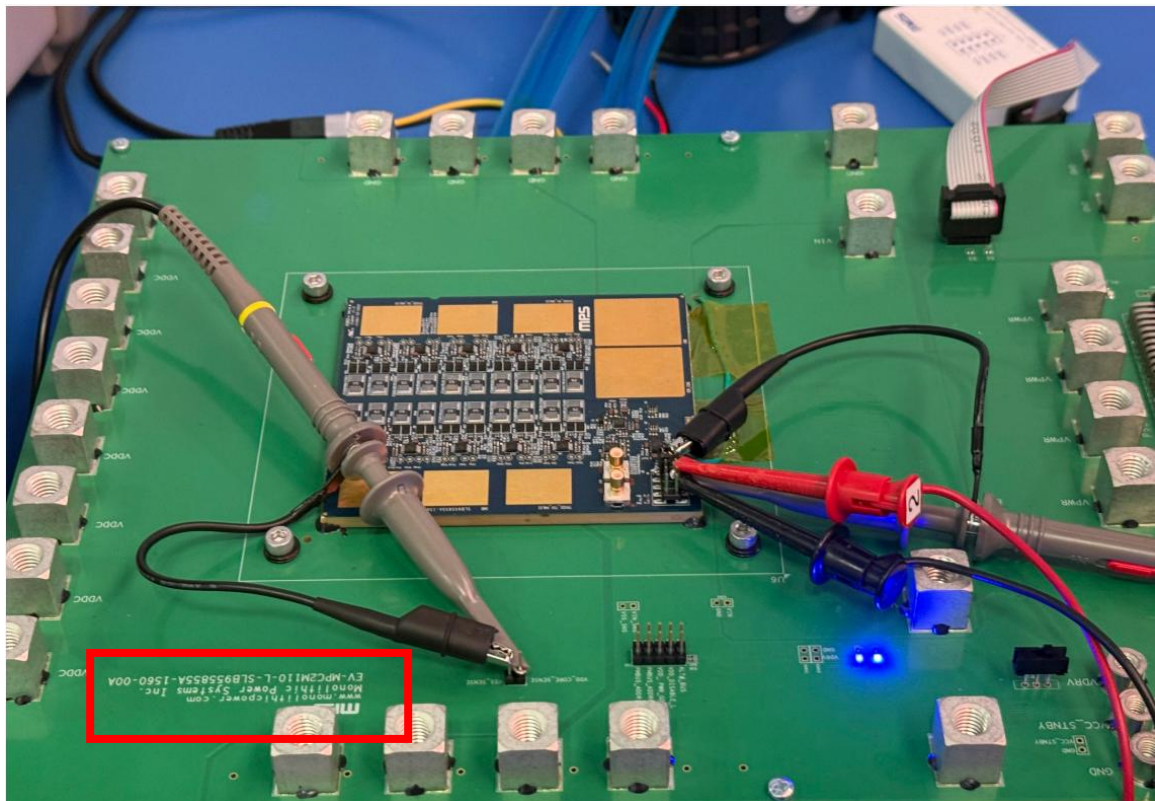
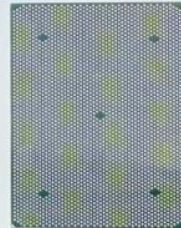
91. MPS displayed an MPC2M110-L in March 2026 at the Applied Power Electronics Conference (“APEC”), which is a power electronics trade show. The trade show took place within the United States in San Antonio, Texas. An individual attended the trade show and took the below photographs of information provided about the MPC2M110-L and a physical sample of the product. *See* Exhibit 15. MPS calls its vertical power delivery system “Z-Axis Power Delivery”, or “ZPDTM” and describes it as a vertical power delivery system, in contrast with “lateral power delivery systems”; ZPDTM modules fall within claims of the asserted patent, as discussed in Section VII, *infra*, and shown in the claim chart at Exhibit 33.

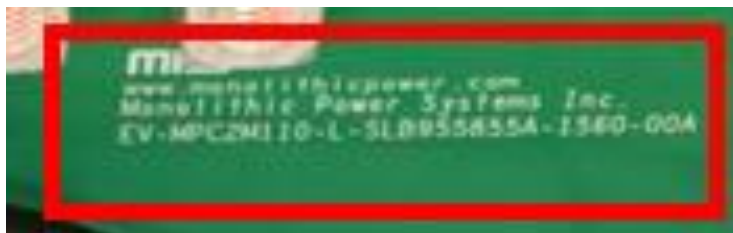
Z-Axis Power Delivery

Custom ZPD™ Module

MPC2M110-L:

- Fully Customized to Optimize System Performance
- Integration of All Components: Controller, DrMOS, Inductors, and Capacitors
- Direct Power Ball Mapping to Minimize PDN
- Highest Power Density





92. The MPC2M110-L was not made in the United States because MPS's production chain, including manufacturing facilities for power modules, are located outside of the United States. *See* Confidential Exhibit 37C at ¶9.

93. The MPC2M110-L comprises a ZPD inter-connection module, a printed circuit board to which the MPC22166 module and/or other compatible modules may be attached. This board, on information and belief, provides interconnects between the MPC22166 and/or other compatible modules and the die or other device requiring power delivery.

94. Because MPS manufactures MPS Accused Products outside of the United States, and such products are used in the United States, MPS necessarily is importing, selling for importation, and/or selling after importation such infringing products within the United States.

E. Flex Respondent

95. Flex is importing, selling for importation, and/or selling within the United States after importation, for example, Flex VPD Modules ("Flex Accused Products") and TPU systems including infringing modules. The specific instances set forth below are representative examples of Flex's unlawful importation, sale for importation, and/or sale within the United States after importation of infringing products.

96. Flex imports, sells for importation, and/or sells within the United States after importation its VPD Modules, which are not made in the United States. Flex manufacturing facilities for its power-module business, which includes VPD Modules, are located outside of the United States. *See* Confidential Exhibit 37C at ¶10.

97. As another example, in May 2024, a Vicor employee visited Celestica's Thailand location and met with Celestica's Global Commodity Engineering team. Confidential Exhibit 17C. At the meeting, the Vicor employee was told that Google's TPUv5 system (codenamed ViperFish) had been and was continuing to be manufactured by Celestica Thailand using Flextronics BMR5150010/00B. On information and belief, that part number is a Flex VPD Module.

98. The statements made to the Vicor employee confirm that Flex VPD modules have been present outside of the United States as part of the construction of Google TPUs by at least Celestica. Further, Google's own TPU locations identifier shows that TPUv5 systems are used by Google in the United States such that at least one Flex VPD Module necessarily was imported into the United States. *See* Exhibit 18 (showing two of the three zone locations for TPUv5 are in the United States).

99. Flex is also a Contract Manufacturer for Google's TPUv7 system, which shares many similarities with TPU v5p. Exhibit 20 at 1; Exhibit 22C. Google TPUv7 systems likewise use VPD technology that infringes the '734 Patent.

100. Flex directly imports, sells for importation, and/or sells within the United States such infringing TPUv7 components. For example, Flex Guadalajara is one of Google's TPUv7 contract manufacturing partners. Exhibit 22C.

101. Flex has two Guadalajara locations: Guadalajara North, Customer Experience Center, Libramiento Carretera a la Base Aérea 5850-4, La Mora, Jardín Real, Zapopan, JAL Mexico 45136; and Guadalajara South, Calle Prol. Lopez Mateos 2915, La Tijera, JAL Mexico 45640. *See* Exhibit 16. Both are located outside of the United States.

102. Further, Google TPUv7 systems are used only in the United States. *See* Exhibit 19.

103. Because Flex manufactures Flex VPD Modules and TPUv7 systems outside of the United States, and such Modules and systems are used in the United States, Flex necessarily is importing, selling for importation, and/or selling after importation such infringing products within the United States.

F. Celestica Respondent

104. Celestica is importing, selling for importation, and/or selling within the United States after importation, for example, the infringing Delta (including Infineon multiphase), Flex, Luxshare, and MPS VPD modules, components thereof, and/or computing containing the same. *See Confidential Exhibit 37C ¶ 12.* The specific instance set forth below is a representative example of Celestica's unlawful importation, sale for importation, and/or sale within the United States after importation of infringing products.

105. For example, in May 2024, a Vicor employee visited Celestica Thailand and met with Celestica's Global Commodity Engineering team. *See Exhibit 17C.* At the meeting, the Vicor employee was told that Google's TPUv5 system (codenamed ViperFish) had been and was continuing to be manufactured by Celestica Thailand using Flextronics BMR5150010/00B. *Id.*

106. The statements made to the Vicor employee confirm that Google's TPUv5 system are manufactured by Celestica outside of the United States. Further, Google's own TPU locations identifier shows that TPUv5 systems are used by Google in the United States such that at least one necessarily was imported into the United States. Exhibit 18 (showing two out of three zone locations for TPUv5 are in the United States).

107. Because Celestica manufactures TPUv5 systems outside of the United States, and such systems are used in the United States, Celestica necessarily is importing, selling for importation, and/or selling after importation such infringing products within the United States.

G. Quanta Respondents

108. Quanta is importing, selling for importation, and/or selling within the United States after importation, for example, the infringing Delta (including Infineon OptiMOS power stage), MPS, Flex, and Luxshare VPD modules, components thereof, and/or computing systems containing the same. *See Confidential Exhibit 37C at ¶¶12, 14.*

109. For example, Quanta is one of Google's TPUv7 contract manufacturing partners. Exhibit 22C.

110. Quanta manufactures Google TPU systems outside of the United States, including at facilities in Asia, Mexico, and Canada, after which the systems are imported into the United States for use by Google. *See Confidential Exhibit 37C at ¶14.*

111. Further, Google TPUv7 systems are used only in the United States. Exhibit 19.

112. Quanta primarily uses infringing Delta VPD modules in the TPUv7 systems it manufactures for Google, as well as using MPS and Luxshare VPD modules. *See Confidential Exhibit 37C at ¶12.*

113. Thus, because Quanta manufactures TPUv7 outside of the United States, such systems are used by Google only in the United States, and such systems infringe, Quanta necessarily is importing, selling for importation, and/or selling after importation infringing products.

H. Foxconn Respondents

114. Foxconn is importing, selling for importation, and/or selling within the United States after importation, for example, the infringing Delta (including Infineon multiphase), MPS, Flex, and Luxshare VPD modules, components thereof, and/or computing systems containing the same. *See Confidential Exhibit 37C.*

115. For example, Foxconn is one of Google's TPUv7 contract manufacturing partners. Exhibit 22C.

116. Foxconn manufactures Google TPU systems outside of the United States, including at facilities in Asia, Mexico, and Canada, after which the systems are imported into the United States for use by Google. *See* Confidential Exhibit 37C at ¶14.

117. Foxconn primarily uses infringing Delta VPD modules in the TPUv7 systems it manufactures for Google, as well as using MPS and Luxshare VPD modules. *See* Confidential Exhibit 37C at ¶12.

118. Further, according to Google, Google TPUv7 systems are used only in the United States. Exhibit 19.

119. Thus, because Foxconn manufactures TPUv7 outside of the United States, and such systems are used by Google products present only in the United States, Foxconn is importing, selling for importation, and/or selling after importation infringing products.

VII. UNLAWFUL AND UNFAIR ACTS COMMITTED BY THE PROPOSED RESPONDENTS

120. Vicor asserts that the Proposed Respondents infringe, literally or under the doctrine of equivalents, at least the following claims of the '734 Patent, in violation of 35 U.S.C. §§ 271(a), (b), and (c). Without discovery, Vicor cannot exhaustively identify all VPD systems, components thereof, and computing systems containing the same that infringe the '734 Patent and that are sold for importation into the United States, imported into the United States, and/or sold within the United States after importation.

121. Vicor reserves its right to supplement its allegations, to further amend this Complaint, and to add Respondents and Accused Products in the future, if necessary, based on discovery received during the Investigation. Attached as Exhibits 27, 29C, 31, 33, and 35C are

claim charts that show how exemplary Accused Products infringe independent claims of the '734 Patent.

Accused Product	Asserted Claims
Delta VPD Modules and vertical power delivery systems, components thereof, and computing systems containing the same, including the Foxconn, Quanta, and Celestica Accused Products	1–8, 11–14, 18–26, 40–56, 65–71, 80, 81, 83, 84, 90–93, 95
Infineon VPD Modules and vertical power delivery systems, components thereof, and computing systems containing the same	1, 2, 8, 40, 45, 53, 67, 68, 81, 83, 84, 90
Luxshare VPD Modules and vertical power delivery systems, components thereof, and computing systems containing the same, including the Foxconn, Quanta, and Celestica Accused Products	1–8, 11–14, 40–45, 53, 67, 68, 81, 83, 84, 90
MPS VPD Modules and vertical power delivery systems, components thereof, and computing systems containing the same, including the Foxconn, Quanta, and Celestica Accused Products	1, 2, 8, 40, 67, 68, 81, 83, 84, 90
Flex VPD Modules and vertical power delivery systems, components thereof, and computing systems containing the same, including the Foxconn, Quanta, and Celestica Accused Products	1–8, 11–14, 18–26, 40–56, 65–71, 80, 81, 83, 84, 90–93, 95

A. Delta's Infringement of the '734 Patent

122. Delta imports, sells for importation, and/or sells within the United States after importation certain Delta Accused Products, such as the Delta VPD Modules, which directly infringe, literally and/or under the doctrine of equivalents, at least claims 1–8, 11–14, 18–26, 40–56, 65–71, 80, 81, 83, 84, 90–93, and 95 of the '734 Patent in violation of 35 U.S.C. § 271(a). The Delta VPD Modules satisfy all claim limitations of claims 1–8, 11–14, 18–26, 40–56, 65–71, 80, 81, 83, 84, 90–93, and 95 of the '734 Patent at the time of importation, sale for importation, and/or sale after importation.

123. Delta also knowingly and intentionally induces infringement of at least claims 1–8, 11–14, 18–26, 40–56, 65–71, 80, 81, 83, 84, 90–93, and 95 of the '734 Patent in violation of 35 U.S.C. § 271(b). For example, at least as of the filing and service of this Complaint and also the filing of the related District Court complaint referenced in Section IX, Delta had knowledge of the '734 Patent and the infringing nature of the Delta Accused Products. Despite this knowledge of the '734 Patent, Delta is expected to continue to actively encourage and instruct its customers and end users (for example, through its marketing and technical support) to use the Delta Accused Products in ways that Delta knows will cause and intends to cause such customers and end users to directly infringe the '734 Patent literally and/or under the doctrine of equivalents. Delta also continues to import, sell for importation, and/or sell in the United States the Delta Accused Products, despite its knowledge of the '734 Patent, thereby specifically intending for and inducing its customers to infringe the '734 Patent through the customers' normal and customary use of the Delta Accused Products.

124. Delta also contributorily infringes at least claims 1–8, 11–14, 18–26, 40–56, 65–71, 80, 81, 83, 84, 90–93, and 95 of the '734 Patent in violation of 35 U.S.C. § 271(c) by selling or offering to sell within the United States or import into the United States VPD systems, components thereof, and computing systems containing the same that incorporate or constitute a material part of the inventions claimed by the '734 Patent. Further, Delta does so knowing that these components are especially made or especially adapted for uses that infringe the '734 Patent and are not staple articles or commodities of commerce suitable for substantial non-infringing use.

125. A claim chart comparing independent claims 1, 2, 40, 45, 49, 53, 67, and 68 of the '734 Patent to the Delta VPD Module, including photographs and drawings where applicable, is attached as Exhibit 27.

B. Infineon's Infringement of the '734 Patent

126. Infineon imports, sells for importation, and/or sells within the United States after importation certain Infineon Accused Products, such as the Infineon VPD Modules, which directly infringe, literally and/or under the doctrine of equivalents, at least claims 1, 2, 8, 40, 45, and 53 of the '734 Patent in violation of 35 U.S.C. § 271(a). The Infineon VPD Modules satisfy all claim limitations of claims 1, 2, 8, 40, 45, and 53 of the '734 Patent at the time of importation, sale for importation, and/or sale after importation.

127. Infineon also knowingly and intentionally induces infringement of at least claims 1, 2, 8, 40, 45, 53, 67, 68, 81, 83, 84, and 90 of the '734 Patent in violation of 35 U.S.C. § 271(b). For example, at least as of the filing and service of this Complaint and also the filing of the related District Court complaint referenced in Section IX, Infineon had knowledge of the '734 Patent and the infringing nature of the Infineon Accused Products. Despite this knowledge of the '734 Patent, Infineon is expected to continue to actively encourage and instruct its customers and end users (for example, through its marketing and technical support) to use the Infineon Accused Products in ways that Infineon knows will cause and intends to cause such customers and end users to directly infringe the '734 Patent literally and/or under the doctrine of equivalents. Infineon also continues to import, sell for importation, and/or sell in the United States the Infineon Accused Products, despite its knowledge of the '734 Patent, thereby specifically intending for and inducing its customers to infringe the '734 Patent through the customers' normal and customary use of the Infineon Accused Products.

128. Infineon also contributorily infringes at least claims 1, 2, 8, 40, 45, 53, 67, 68, 81, 83, 84, and 90 of the '734 Patent in violation of 35 U.S.C. § 271(c) by selling or offering to sell within the United States or import into the United States VPD systems, components thereof, and computing systems containing the same that incorporate or constitute a material part of the

inventions claimed by the '734 Patent. Further, Infineon does so knowing that these components are especially made or especially adapted for uses that infringe the '734 Patent and are not staple articles or commodities of commerce suitable for substantial non-infringing use.

129. A claim chart comparing independent claims 1, 2, 40, 45, 53, 67, and 68 of the '734 Patent to the Infineon VPD Module, including photographs and drawings where applicable, is attached as Exhibit 29C.

C. Luxshare's Infringement of the '734 Patent

130. Luxshare imports, sells for importation, and/or sells within the United States after importation certain Luxshare Accused Products, such as the Luxshare VPD Modules, which directly infringe, literally and/or under the doctrine of equivalents, at least claims 1–8, 11-14, 40–45, 53, 67, 68, 81, 83, 84, and 90 of the '734 Patent in violation of 35 U.S.C. § 271(a). The Luxshare VPD Modules satisfy all claim limitations of claims 1–8, 11-14, 40–45, 53, 67, 68, 81, 83, 84, and 90 of the '734 Patent at the time of importation, sale for importation, and/or sale after importation.

131. Luxshare also knowingly and intentionally induces infringement of at least claims 1–8, 11-14, 40–45, 53, 67, 68, 81, 83, 84, and 90 of the '734 Patent in violation of 35 U.S.C. § 271(b). For example, at least as of the filing and service of this Complaint and also the filing of the related District Court complaint referenced in Section IX, Luxshare had knowledge of the '734 Patent and the infringing nature of the Luxshare Accused Products. Despite this knowledge of the '734 Patent, Luxshare is expected to continue to actively encourage and instruct its customers and end users (for example, through its marketing and technical support) to use the Luxshare Accused Products in ways that Luxshare knows will cause, and intends to cause, such customers and end users to directly infringe the '734 Patent literally and/or under the doctrine of equivalents. Luxshare also continues to import, sell for importation, and/or sell in the United States the

Luxshare Accused Products, despite its knowledge of the '734 Patent, thereby specifically intending for and inducing its customers to infringe the '734 Patent through the customers' normal and customary use of the Luxshare Accused Products.

132. Luxshare also contributorily infringes at least claims 1–8, 11-14, 40–45, 53, 67, 68, 81, 83, 84, and 90 of the '734 Patent in violation of 35 U.S.C. § 271(c) by selling or offering to sell within the United States or import into the United States VPD systems, components thereof, and computing systems containing the same that incorporate or constitute a material part of the inventions claimed by the '734 Patent. Further, Luxshare does so knowing that these components are especially made or especially adapted for uses that infringe the '734 Patent and are not staple articles or commodities of commerce suitable for substantial non-infringing use.

133. A claim chart comparing independent claims 1, 2, 40, 45, 53, 67, and 68 of the '734 Patent to the Luxshare VPD Module, including photographs and drawings where applicable, is attached as Exhibit 31.

D. MPS's Infringement of the '734 Patent

134. MPS imports, sells for importation, and/or sells within the United States after importation certain MPS Accused Products, such as the MPS VPD Modules (which MPS calls the ZPD™ Modules), which directly infringe, literally and/or under the doctrine of equivalents, at least claims 1, 2, 8, 40, 67, 68, 81, 83, 84, and 90 of the '734 Patent in violation of 35 U.S.C. § 271(a). The MPS VPD Modules satisfy all claim limitations of claims 1, 2, 8, 40, 67, 68, 81, 83, 84, and 90 of the '734 Patent at the time of importation, sale for importation, and/or sale after importation.

135. MPS also knowingly and intentionally induces infringement of at least claims 1, 2, 8, 40, 67, 68, 81, 83, 84, and 90 of the '734 Patent in violation of 35 U.S.C. § 271(b). For example, at least as of the filing and service of this Complaint and also the filing of the related District Court

complaint referenced in Section IX, MPS had knowledge of the '734 Patent and the infringing nature of the MPS Accused Products. Despite this knowledge of the '734 Patent, MPS is expected to continue to actively encourage and instruct its customers and end users (for example, through its marketing and technical support) to use the MPS Accused Products in ways that MPS knows will cause and intends to cause such customers and end users to directly infringe the '734 Patent literally and/or under the doctrine of equivalents. MPS also continues to import, sell for importation, and/or sell in the United States the MPS Accused Products, despite its knowledge of the '734 Patent, thereby specifically intending for and inducing its customers to infringe the '734 Patent through the customers' normal and customary use of the MPS Accused Products.

136. MPS also contributorily infringes at least claims 1, 2, 8, 40, 67, 68, 81, 83, 84, and 90 of the '734 Patent in violation of 35 U.S.C. § 271(c) by selling or offering to sell within the United States or import into the United States VPD systems, components thereof, and computing systems containing the same that incorporate or constitute a material part of the inventions claimed by the '734 Patent. Further, MPS does so knowing that these components are especially made or especially adapted for uses that infringe the '734 Patent and are not staple articles or commodities of commerce suitable for substantial non-infringing use.

137. A claim chart comparing independent claims 1, 2, 40, 67, and 68 of the '734 Patent to the MPS VPD Module, including photographs and drawings where applicable, is attached as Exhibit 33.

E. Flex's Infringement of the '734 Patent

138. Flex imports, sells for importation, and/or sells within the United States after importation certain Flex Accused Products, such as the Flex VPD Modules, which directly infringe, literally and/or under the doctrine of equivalents, at least claims 1–8, 11–14, 18–26, 40–56, 65–71, 80, 81, 83, 84, 90–93, and 95 of the '734 Patent in violation of 35 U.S.C. § 271(a). The

Flex VPD Modules satisfy all claim limitations of 1–8, 11–14, 18–26, 40–56, 65–71, 80, 81, 83, 84, 90–93, and 95 of the '734 Patent at the time of importation, sale for importation, and/or sale after importation.

139. Flex also knowingly and intentionally induces infringement of at least claims 1–8, 11–14, 18–26, 40–56, 65–71, 80, 81, 83, 84, 90–93, and 95 of the '734 Patent in violation of 35 U.S.C. § 271(b). For example, at least as of the filing and service of this Complaint and also the filing of the related District Court complaint referenced in Section IX, Flex had knowledge of the '734 Patent and the infringing nature of the Flex Accused Products. Despite this knowledge of the '734 Patent, Flex is expected to continue to actively encourage and instruct its customers and end users (for example, through its marketing and technical support) to use the Flex Accused Products in ways that Flex knows and intends will cause such customers and end users to directly infringe the '734 Patent literally and/or under the doctrine of equivalents. Flex also continues to import, sell for importation, and/or sell in the United States the Flex Accused Products, despite its knowledge of the '734 Patent, thereby specifically intending for and inducing its customers to infringe the '734 Patent through the customers' normal and customary use of the Flex Accused Products.

140. Flex also contributorily infringes at least claims 1–8, 11–14, 18–26, 40–56, 65–71, 80, 81, 83, 84, 90–93, and 95 of the '734 Patent in violation of 35 U.S.C. § 271(c) by selling or offering to sell within the United States or import into the United States VPD systems, components thereof, and computing systems containing the same that incorporate or constitute a material part of the inventions claimed by the '734 Patent. Further, Flex does so knowing that these components are especially made or especially adapted for uses that infringe the '734 Patent and are not staple articles or commodities of commerce suitable for substantial non-infringing use.

141. A claim chart comparing independent claims 1, 2, 40, 45, 49, 53, 67, and 68 of the '734 Patent to the Flex VPD Module, including photographs and drawings where applicable, is attached as Exhibit 35C. On information and belief, this chart is representative of Flex VPD Modules used in Google TPUs as a group.

F. Celestica's Infringement of the '734 Patent

142. Celestica imports, sells for importation, and/or sells within the United States after importation certain Celestica Accused Products, such as the Flex, Delta, Luxshare, and MPS VPD Modules and/or vertical power delivery systems and/or computer systems containing the same, which directly infringe, literally and/or under the doctrine of equivalents, at least claims 1–8, 11–14, 18–26, 40–56, 65–71, 80, 81, 83, 84, 90–93, and 95 of the '734 Patent in violation of 35 U.S.C. § 271(a). The Celestica Accused Products satisfy all claim limitations of claims 1–8, 11–14, 18–26, 40–56, 65–71, 80, 81, 83, 84, 90–93, and 95 of the '734 Patent at the time of importation, sale for importation, and/or sale after importation.

143. Celestica also knowingly and intentionally induces infringement of at least claims 1–8, 11–14, 18–26, 40–56, 65–71, 80, 81, 83, 84, 90–93, and 95 of the '734 Patent in violation of 35 U.S.C. § 271(b). For example, at least as of the filing and service of this Complaint and also the filing of the related District Court complaint referenced in Section IX, Celestica has had knowledge of the '734 Patent and the infringing nature of the Celestica Accused Products. Despite this knowledge of the '734 Patent, Celestica is expected to continue to actively encourage and instruct its customers and end users (for example, through its marketing and technical support) to use the Celestica Accused Products in ways that Celestica knows and intends will cause such customers and end users to directly infringe the '734 Patent literally and/or under the doctrine of equivalents. Celestica also continues to import, sell for importation, and/or sell in the United States the Celestica Accused Products, despite its knowledge of the '734 Patent, thereby specifically

intending for and inducing its customers to infringe the '734 Patent through the customers' normal and customary use of the Celestica Accused Products.

144. Celestica also contributorily infringes at least claims 1–8, 11–14, 18–26, 40–56, 65–71, 80, 81, 83, 84, 90–93, and 95 of the '734 Patent in violation of 35 U.S.C. § 271(c) by selling or offering to sell within the United States or import into the United States VPD systems, components thereof, and computing systems containing the same that incorporate or constitute a material part of the inventions claimed by the '734 Patent. Further, Celestica does so knowing that these components are especially made or especially adapted for uses that infringe the '734 Patent and are not staple articles or commodities of commerce suitable for substantial non-infringing use.

145. A claim chart comparing independent claims 1, 2, 40, 45, 49, 53, 67, and 68 of the '734 Patent to a Flex VPD Module that is representative in relevant part of the Flex VPD Modules Celestica uses in its Celestica Accused Products, including photographs and drawings where applicable, is attached as Exhibit 35C.

146. A claim chart comparing independent claims 1, 2, 40, 45, 49, 53, 67, and 68 of the '734 Patent to a Delta VPD Module that is representative in relevant part of the Delta VPD Modules Celestica uses in its Celestica Accused Products, including photographs and drawings where applicable, is attached as Exhibit 27.

147. A claim chart comparing independent claims 1, 2, 40, 45, 53, 67, and 68 of the '734 Patent to the Luxshare VPD Module that is representative in relevant part of the Luxshare VPD Modules Celestica uses in its Celestica Accused Products, including photographs and drawings where applicable, is attached as Exhibit 31.

148. A claim chart comparing independent claims 1, 2, 40, 67, and 68 of the '734 Patent to an MPS VPD Module that is representative in relevant part of the MPS VPD Modules that

Celestica uses in its Celestica Accused Products, including photographs and drawings where applicable, is attached as Exhibit 33.

G. Quanta's Infringement of the '734 Patent

149. Quanta imports, sells for importation, and/or sells within the United States after importation certain Quanta Accused Products, such as the Delta VPD Modules, Luxshare VPD Modules, MPS VPD Modules, Flex VPD Modules, and/or vertical power delivery systems and/or computer systems containing the same, which directly infringe, literally and/or under the doctrine of equivalents, at least claims 1–8, 11–14, 18–26, 40–56, 65–71, 80, 81, 83, 84, 90–93, and 95 of the '734 Patent in violation of 35 U.S.C. § 271(a). The Quanta Accused Products satisfy all claim limitations of at least claims 1–8, 11–14, 18–26, 40–56, 65–71, 80, 81, 83, 84, 90–93, and 95 of the '734 Patent at the time of importation, sale for importation, and/or sale after importation.

150. Quanta also knowingly and intentionally induces infringement of at least claims 1–8, 11–14, 18–26, 40–56, 65–71, 80, 81, 83, 84, 90–93, and 95 of the '734 Patent in violation of 35 U.S.C. § 271(b). For example, at least as of the filing and service of this Complaint and also the filing of the related District Court complaint referenced in Section IX, Quanta has had knowledge of the '734 Patent and the infringing nature of the Quanta Accused Products. Despite this knowledge of the '734 Patent, Quanta is expected to continue to actively encourage and instruct its customers and end users (for example, through its marketing and technical support) to use the Quanta Accused Products in ways that Quanta knows and intends will cause such customers and end users to directly infringe the '734 Patent literally and/or under the doctrine of equivalents. Quanta also continues to import, sell for importation, and/or sell in the United States the Quanta Accused Products, despite its knowledge of the '734 Patent, thereby specifically intending for and inducing its customers to infringe the '734 Patent through the customers' normal and customary use of the Quanta Accused Products.

151. Quanta also contributorily infringes at least claims 1–8, 11–14, 18–26, 40–56, 65–71, 80, 81, 83, 84, 90–93, and 95 of the '734 Patent in violation of 35 U.S.C. § 271(c) by selling or offering to sell within the United States or import into the United States VPD systems, components thereof, and computing systems containing the same that incorporate or constitute a material part of the inventions claimed by the '734 Patent. Further, Quanta does so knowing that these components are especially made or especially adapted for uses that infringe the '734 Patent and are not staple articles or commodities of commerce suitable for substantial non-infringing use.

152. A claim chart comparing independent claims 1, 2, 40, 45, 49, 53, 67, and 68 of the '734 Patent to a Delta VPD Module that is representative in relevant part of the Delta VPD Modules that Quanta uses in its Quanta Accused Products, including photographs and drawings where applicable, is attached as Exhibit 27.

153. A claim chart comparing independent claims 1, 2, 40, 67 and 68 of the '734 Patent to an MPS VPD Module that is representative in relevant part of the MPS VPD Modules that Quanta uses in its Quanta Accused Products, including photographs and drawings where applicable, is attached as Exhibit 33.

154. A claim chart comparing independent claims 1, 2, 40, 45, 53, 67, and 68 of the '734 Patent to a Luxshare VPD Module that is representative in relevant part of the Luxshare VPD Modules that Quanta uses in its Quanta Accused Products, including photographs and drawings where applicable, is attached as Exhibit 31.

155. A claim chart comparing independent claims 1, 2, 40, 45, 49, 53, 67, and 68 of the '734 Patent to a Flex VPD Module that is representative in relevant part of the Flex VPD Modules Quanta uses in its Quanta Accused Products, including photographs and drawings where applicable, is attached as Exhibit 35C.

H. Foxconn's Infringement of the '734 Patent

156. Foxconn imports, sells for importation, and/or sells within the United States after importation certain Foxconn Accused Products, such as the Delta VPD Modules, MPS VPD Modules, Luxshare VPD Modules, Flex VPD Modules, and/or vertical power delivery systems and/or computer systems containing the same, which directly infringe, literally and/or under the doctrine of equivalents, at least claims 1–8, 11–14, 18–26, 40–56, 65–71, 80, 81, 83, 84, 90–93, and 95 of the '734 Patent in violation of 35 U.S.C. § 271(a). The Foxconn Accused Products satisfy all claim limitations of at least claims 1–8, 11–14, 18–26, 40–56, 65–71, 80, 81, 83, 84, 90–93, and 95 of the '734 Patent at the time of importation, sale for importation, and/or sale after importation.

157. Foxconn also knowingly and intentionally induces infringement of at least claims 1–8, 11–14, 18–26, 40–56, 65–71, 80, 81, 83, 84, 90–93, and 95 of the '734 Patent in violation of 35 U.S.C. § 271(b). For example, at least as of the filing and service of this Complaint and also the filing of the related District Court complaint referenced in Section IX, Foxconn has had knowledge of the '734 Patent and the infringing nature of the Foxconn Accused Products. Despite this knowledge of the '734 Patent, Foxconn is expected to continue to actively encourage and instruct its customers and end users (for example, through its marketing and technical support) to use the Foxconn Accused Products in ways that Foxconn knows and intends will cause such customers and end users to directly infringe the '734 Patent literally and/or under the doctrine of equivalents. Foxconn also continues to import, sell for importation, and/or sell in the United States the Foxconn Accused Products, despite its knowledge of the '734 Patent, thereby specifically intending for and inducing its customers to infringe the '734 Patent through the customers' normal and customary use of the Foxconn Accused Products.

158. Foxconn also contributorily infringes at least claims 1–8, 11–14, 18–26, 40–56, 65–71, 80, 81, 83, 84, 90–93, and 95 of the '734 Patent in violation of 35 U.S.C. § 271(c) by selling or offering to sell within the United States or import into the United States VPD systems, components thereof, and computing systems containing the same that incorporate or constitute a material part of the inventions claimed by the '734 Patent. Further, Foxconn does so knowing that these components are especially made or especially adapted for uses that infringe the '734 Patent and are not staple articles or commodities of commerce suitable for substantial non-infringing use.

159. A claim chart comparing independent claims 1, 2, 40, 45, 49, 53, 67 and 68 of the '734 Patent to a Delta VPD Module that is representative in relevant part of the Delta VPD Modules that Foxconn uses in its Accused Products, including photographs and drawings where applicable, is attached as Exhibit 27.

160. A claim chart comparing independent claims 1, 2, 40, 67, and 68 of the '734 Patent to an MPS VPD Module that is representative in relevant part of the MPS VPD Modules that Foxconn uses in its Accused Products, including photographs and drawings where applicable, is attached as Exhibit 33.

161. A claim chart comparing independent claims 1, 2, 40, 45, 53, 67, and 68 of the '734 Patent to a Luxshare VPD Module that is representative in relevant part of the Luxshare VPD Modules that Foxconn uses in its Accused Products, including photographs and drawings where applicable, is attached as Exhibit 31.

162. A claim chart comparing independent claims 1, 2, 40, 45, 49, 53, 67, 68 of the '734 Patent to a Flex VPD Module that is representative in relevant part of the Flex VPD Modules Foxconn uses in its Foxconn Accused Products, including photographs and drawings where applicable, is attached as Exhibit 35C.

VIII. CLASSIFICATION OF THE ACCUSED PRODUCTS UNDER THE HARMONIZED TARIFF SCHEDULE

163. The Accused Products are classified under at least the following classifications of the Harmonized Tariff Schedule (“HTS”) of the United States: 8501, 8504, 8504.40, 8504.40.90, 8504.90.20, 8528.71.30, 8534, 8537.10.6000, 8538.90, 8541, 8542, and 8542.31. These HTS identifications are illustrative and not exhaustive. These classifications are exemplary in nature, are intended for illustration only, and are not intended to restrict the scope of the Accused Products, the investigation, any exclusion order, or any of the requested relief.

IX. RELATED LITIGATION

164. In parallel to the filing of this Complaint, Vicor is filing separate District Court complaints in the United States District Court for the Eastern District of Texas and the United States District Court for the Western District of Texas against certain of the Proposed Respondents, alleging infringement of one or more claims of the ’734 Patent asserted in this Complaint. Vicor will file a supplemental letter with the Commission identifying the case numbers for the District Court complaints, once the case numbers are available.

165. To Vicor’s knowledge, the ’734 Patent is not and has not been the subject of any current or prior litigation other than the litigation specified above.

X. REQUIRED 19 C.F.R. § 210.12(a)(1) STATEMENT

Pursuant to 19 C.F.R. § 210.12(a)(1) and § 210.4(c), the signatory to this complaint certifies that to the best of his “knowledge, information, and belief, formed after an inquiry reasonable under the circumstances” the complaint is presented for a proper purpose, the contentions herein are warranted or non-frivolous, and the allegations have evidentiary support or are likely to have such support after reasonable discovery.

XI. RELIEF REQUESTED

WHEREFORE, by reason of the foregoing, Complainant Vicor respectfully requests that the United States International Trade Commission:

- (a) institute an investigation pursuant to Section 337 of the Tariff Act of 1930, as amended, 19 U.S.C. § 1337, with respect to the Proposed Respondents' violations of that section based on the importation into the United States, sale for importation, and/or the sale within the United States after importation of Proposed Respondents' infringing products;
- (b) issue a limited exclusion order pursuant to 19 U.S.C. § 1337(d) forbidding entry into the United States of Proposed Respondents' products that infringe one or more claims of United States Patent No. 10,903,734;
- (c) issue a cease and desist order, pursuant to 19 U.S.C. § 1337(f), prohibiting the Proposed Respondents, their domestic subsidiaries, and their related companies and agents from engaging in the importation, sale for importation, marketing, distribution, offering for sale, the sale after importation of, or otherwise transferring within the United States products that infringe United States Patent No. 10,903,734;
- (d) impose a bond upon importation and sales of infringing products during the 60-day Presidential review period pursuant to 19 U.S.C. § 1337(j); and
- (e) issue such other and further relief as the Commission deems just and proper under the law, based upon the facts determined by the investigation and the authority of the Commission.

Dated: September 8, 2026

Respectfully submitted,
/s/ Louis S. Mastriani

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Counsel for Vicor Corporation

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

In the Matter of

CERTAIN VERTICAL POWER DELIVERY
SYSTEMS, COMPONENTS THEREOF,
AND COMPUTING SYSTEMS
CONTAINING THE SAME

Docket No. _____

VERIFICATION OF COMPLAINT

I, Andrew D'Amico, General Counsel, Intellectual Property, of Vicor Corporation, am authorized to execute this verification on behalf of Vicor Corporation. I have read the Complaint and am aware of its contents. To the best of my knowledge, information, and belief based on reasonable inquiry under the circumstances, I hereby declare under penalty of perjury under the laws of the United States of America that the following is true and correct:

1. The allegations contained in the Complaint are well grounded in fact and have evidentiary support, or are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery;
2. The claims and other legal contentions set forth in the Complaint are warranted by existing laws or by a good faith, non-frivolous argument for extension, modification or reversal of existing law, or by the establishment of new law; and
3. The Complaint is not being filed for any improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation.

Executed on September 3, 2026, at Cannes, France.



Andrew D'Amico
General Counsel, Intellectual Property
Vicor Corporation